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# FIRST AMENDMENT TO LEASE

This First Amendment to Lease (this "Amendment") is entered into as of October 3, 2018 by and between RMR OPFCP LP, a Delaware limited partnership ("Landlord") and Foster LLP, a Texas limited liability partnership ("Tenant") formerly known as FosterQuan, LLP.

W I T N E S S E T H:

WHEREAS, B&G Vista Ridge, L.P. ("Original Landlord") and Tenant entered into that certain Lease dated July 14, 2014 (the "Lease"), for certain premises in the building located at 912 South Capital of Texas Highway, Austin, Texas; and

WHEREAS, by mesne assignments, Landlord has succeeded to the interest of Original Landlord under the Lease; and

WHEREAS, the term of the Lease is scheduled to expire on August 31, 2019; and

WHEREAS, Landlord and Tenant desire to amend the Lease to extend the term thereof, subject to and upon the terms and conditions hereinafter set forth.

NOW, THEREFORE, in consideration of the foregoing and for other consideration, the receipt and sufficiency of which are hereby acknowledged, Landlord and Tenant agree that the Lease is hereby amended as follows:

1. Capitalized terms used and not otherwise defined herein shall have the meanings ascribed to such terms in the Lease.

2. The Original Term of the Lease is hereby extended for the period commencing on September 1, 2019 and ending on November 30, 2026.

3. For the period commencing on September 1, 2019 and ending on November 30, 2026, Tenant shall pay Annual Fixed Rent in accordance with the following schedule:

| Period | Base Rent (per rentable square foot per annum) | Base Rent (per annum) | Monthly Installment |
|---|---|---|---|
| September 1, 2019 – November 30, 2020 | $18.50 | $186,498.50 | $15,541.54 |
| December 1, 2020 – November 30, 2021 | $19.00 | $191,539.00 | $15,961.58 |
| December 1, 2021 – November 30, 2022 | $19.50 | $196,579.50 | $16,381.63 |
| December 1, 2022 – November 30, 2023 | $20.00 | $201,620.00 | $16,801.67 |
| December 1, 2023 – November 30, 2024 | $20.50 | $206,660.50 | $17,221.71 |
| December 1, 2024 – November 30, 2025 | $21.00 | $211,701.00 | $17,641.75 |
| December 1, 2025 – November 30, 2026 | $21.50 | $216,741.50 | $18,061.79 |

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Annual Fixed Rent shall be abated for the months of September, October and November, 2019; however there shall be no abatement if there shall exist a Default of Tenant as of September 1, 2019.

4. Tenant hereby acknowledges that it is in possession of the Premises and is agreeing to an extension of the Original Term with the Premises being accepted in their "as-is" condition as of the date of this Amendment.

Landlord shall however make improvements to the Premises requested by Tenant and approved by Landlord, provided that (i) not later than sixty (60) days following the date hereof, Tenant shall have submitted to Landlord for Landlord's approval a detailed description of all of the improvements desired by Tenant and all information (including schematic plans or sketches, as necessary) required for Landlord to design and price such improvements, (ii) the estimated cost of such improvements does not exceed Landlord's Contribution (hereinafter defined) unless Tenant shall agree in writing to reimburse Landlord for such excess, and (iii) Landlord's contractor determines that all such improvements can be completed, using standard working methods. Landlord's approval of Tenant's requested improvements shall not be unreasonably withheld and any disapproval shall be accompanied by a specific statement of reasons therefor, but Landlord may withhold approval if the estimated cost exceeds 150% of Landlord's Contribution.

Landlord shall perform the improvements requested by Tenant and approved by Landlord ("Landlord's Work") according to a reasonable construction schedule, in compliance with applicable laws and codes and with Building standard materials unless expressly agreed otherwise in writing. Tenant acknowledges that Landlord's Work may be performed during normal Building operating hours, and Tenant shall provide Landlord's contractors with access to the Premises during such times to perform Landlord's Work. Tenant agrees to cooperate with Landlord and Landlord's contractor so as not to delay or interfere with the performance of Landlord's Work, including, without limitation, removing Tenant's furniture, equipment and other personal property from the work areas upon receiving a request to do so from Landlord's contractor. Landlord shall direct its contractor to use all reasonable efforts to coordinate its activities within the Premises with Tenant and to use reasonable efforts to minimize any interference with Tenant's use of the Premises caused by the performance of Landlord's Work, to the extent practicable, but Landlord shall incur no liability to Tenant for any disruption of Tenant's business caused by the performance of Landlord's Work.

Landlord shall provide Tenant with an allowance ("Landlord's Contribution") of $70,567.00 for the performance of Landlord's Work, and Tenant shall not be liable for any cost of Landlord's Work to the extent the total cost thereof is less than or equal to Landlord's Contribution, nor shall Tenant be entitled to any refund or credit if the cost of Landlord's Work is less than Landlord's Contribution except as hereinafter provided. To the extent that the cost of Landlord's Work exceeds Landlord's Contribution (such excess being the "Excess Cost"), Tenant shall pay the Excess Cost within ten (10) days after delivery to Tenant of a final accounting of the cost of Landlord's Work. For purposes of this paragraph, the "cost" of Landlord's Work shall be the actual cost to Landlord of performing Landlord's Work including, without limitation, all architectural and engineering fees and expenses and all contractor charges for the cost of labor and materials, profit, general conditions and overhead and supervision and

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all filing fees and other permitting costs, and a supervision fee to retained by Landlord equal to five percent (5%) of the cost of Landlord's Work exclusive of such fee. Tenant shall, if requested by Landlord, execute an agreement confirming Landlord's estimate of any Excess Cost, and Tenant's obligation on account thereof, within five (5) days after Landlord's request therefor.

If the cost of Landlord's Work shall total less than $70,567.00, or if Tenant shall not request that Landlord perform any improvements to the Premises, then Tenant may elect to apply up to $50,405.00 of the remaining Landlord's Contribution (any such remaining amount being the "Balance") as a credit against Annual Fixed Rent due under the Lease and up to $10,081.00 of the Balance as reimbursement for the purchase and installation of furniture, trade fixtures and equipment for the Premises. Landlord shall reimburse Tenant for such costs (in an amount equal to the lesser of the invoices for the purchase of the aforesaid property submitted by Tenant or $10,081.00, provided that in no event shall the sum of the cost of Landlord's Work and the reimbursement or credit provided for in this paragraph exceed $70,567.00) within thirty (30) days after Tenant submits to Landlord invoices for such costs, and provided further that Landlord shall have no obligation to make any payment to Tenant hereunder or to credit any amounts against Annual Fixed Rent prior to the time that the cost of Landlord's Work shall have been determined, at any time after there shall have occurred a default of Tenant's obligations under the Lease or with respect to any request for credit or payment received later than September 30, 2019.

5. The definition of "Security Deposit" as set forth in Section 1.1 of the Lease is hereby amended to be $15,541.54. Concurrently with the execution of this Amendment, Tenant shall deposit $15,541.54 with Landlord to be held by Landlord as the Security Deposit pursuant to Section 4.7 of the Lease. Within thirty (30) days following the date of this Amendment, Landlord shall return the Letter of Credit currently held by Landlord to Tenant.

6. Tenant warrants and represents that it has dealt with no broker in connection with the execution of this Amendment other than Jones Lang LaSalle and Peloton Commercial Real Estate, and in the event of any brokerage claims or liens against Landlord or the Property predicated upon or arising out of prior dealings with Tenant, other than by Jones Lang LaSalle and/or Peloton Commercial Real Estate, Tenant agrees to defend the same and indemnify and hold Landlord harmless against any such claim, and to discharge any such lien.

7. As amended hereby, the Lease is hereby ratified and confirmed.

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IN WITNESS WHEREOF, the parties hereunto have executed this Amendment as of the date first written above.

**LANDLORD:**

RMR OPFCP LP

By: The RMR Group LLC, its agent

By: DocuSigned by: 6279A0805EB8424...
Jennifer F. Francis
Senior Vice President

**TENANT:**

Foster LLP

By: DocuSigned by: Robert F. Loughran 701D291B0CA8450...
Robert F. Loughran
Chief Operating Officer